TEMPORARY USE
BOONE COUNTY PLANNING COMMISSION

A Plot Plan which includes the information required by Section 3586 of the Boone County Zoning Regulations must accompany this application

SECTION A: (To be completed by applicant)

1. Applicant: _____

   Mailing Address: _____

   _____ _____ _____
   City State Zip Code

   Phone Number: _____ Fax Number: _____

   Email: _____

2. Location Of Temporary Activity: _____

   _____ _____ _____
   City State Zip Code

3. Size Of Site (acres): _____

4. Property Owner: _____

   Mailing Address: _____

   _____ _____ _____
   City State Zip Code

   Phone Number: _____ Fax Number: _____

   Email: _____

5. Description Of Request: _____

6 Requested Starting Date: _____ Requested Ending Date: _____

I, the undersigned, understand and agree that the above described temporary activities will be discontinued no later than the expiration date shown on the approved Temporary Use Permit.

Property Owner's Signature: _____

Applicant's Signature: _____

Applicant's Name (Please Print or Type): _____

SECTION B: (To be completed by Planning Commission staff)

1. Date Received: _____

2. Review Fee: _____

3. Receipt Number: _____

4. Staff Reviewer: _____ Date: _____

5. Staff Action:

_____ Approval Zoning District: _____

_____ Approval with Condition(s) (see # 6)

_____ Denial (see #7)

Starting Date: _____ Ending Date: _____

6. Conditions of Approval: _____

_____

_____

_____

_____

7. Reasons for Denial: _____

_____

_____

_____

_____

Boone County Planning Commission
Boone County Administration Building
2950 Washington Street, Room 317
P.O. Box 958
Burlington, Kentucky 41005
Phone: 859-334-2196
plancom@boonecountyky.org
www.boonecountyky.org

SECTION 3511 TEMPORARY USE PERMITS

A. Temporary Use Permits allow seasonal commercial activities which are open to the public and of limited duration on farms which contain at least fifty (50) contiguous acres, regardless of district. The seasonal commercial activities must be accessory to active agricultural production occurring on the property. Examples include but are not limited to farm tours, hay rides, agricultural exhibits, corn mazes, petting zoos, barn dances, and other agri-tourism activities. Sales of produce grown on the premises or other goods that are related to the seasonal commercial activities are also permitted.

B. If the proposed activities are listed under the applicable district as a Conditional Use, a property owner may elect to apply for a Conditional Use Permit per the requirements of ARTICLE 2. If a Conditional Use Permit is obtained for the seasonal commercial activities, a Temporary Use Permit is not required and the terms of the Conditional Use Permit apply to the seasonal commercial activities and not the Temporary Use Permit requirements.

SECTION 3512 TIME LIMITS FOR TEMPORARY USE PERMITS

A. Activities authorized by a Temporary Use Permit are permitted on a site for one period of up to six (6) calendar weeks per calendar year.

SECTION 3513 TEMPORARY USE PERMIT REQUIRED

A. Prior to initiating any activities permitted by a Temporary Use Permit, the person or persons owning or having control of the property shall apply and be required to obtain a permit from the Zoning Administrator. A completed application form as prescribed by the Zoning Administrator, fee, and a plot plan which indicates the location of the proposed temporary activities including parking areas, existing buildings and paved areas, and property lines, shall be submitted. The Zoning Administrator shall review the application and determine within three (3) working days from the submittal date whether or not the plan conforms with this ARTICLE 35 and all other applicable provisions of these regulations.

B. If the Zoning Administrator refuses to issue a Temporary Use Permit, the reasons for such refusal shall be submitted to the applicant in writing within three (3) working days from the date the complete application was submitted. An applicant refused approval for a Temporary Use Permit may appeal such action to the Board of Adjustment and Zoning Appeals in accordance with the provisions of ARTICLE 2.

SECTION 3514 TEMPORARY USE PERMIT PERFORMANCE STANDARDS

A. The Zoning Administrator shall approve a complete Temporary Use Permit application which complies with the following performance standards and all other applicable requirements of these regulations.

   a. The proposed seasonal commercial activities must be accessory to active agricultural production on a site which contains at least fifty (50) contiguous acres.

   b. A two-way driveway minimally surfaced with gravel shall be provided between the road and parking area. No specific surfacing material is required for the parking area. A designated parking area which is large enough for the anticipated demand shall be provided on site.

   c. The seasonal commercial activities shall be open to the public only between dawn and 9:00 p.m.

   d. No amplified sound shall be permitted outdoors.

   e. All activities authorized by a Temporary Use Permit, including parking, shall not be located within two hundred (200) feet from a side or rear property line adjoining a tract which contains a residence, or within fifty (50) feet from a side or rear property line adjoining a tract with an active agricultural operation. Other

than the access drive, all activities authorized by a Temporary Use Permit shall not be located within fifty (50) feet from a road right-of-way.

f. The Zoning Administrator may approve exceptions to the performance standards in this section provided a specific proposal fulfills the essential purpose and effect of the stated requirements.

SECTION 3515 TEMPORARY USE PERMIT FEE

A. At the time of application for a Temporary Use Permit, the applicant shall pay in full to the Boone County Planning Commission a fee as indicated in the adopted fee schedule.